

The Rendezvous

Ivan Sergeevich Turgenev

Project Gutenberg

The Rendezvous

Ivan Sergeevich Turgenev

Project Gutenberg

The Project Gutenberg eBook of The Rendezvous

This eBook is for the use of anyone anywhere in the United States and most other parts of the world at no cost and with almost no restrictions whatsoever. You may copy it, give it away or re-use it under the terms of the Project Gutenberg License included with this eBook or online at www.gutenberg.org. If you are not located in the United States, you will have to check the laws of the country where you are located before using this eBook.

Title: The Rendezvous

Author: Ivan Sergeevich Turgenev

Translator: Herman Bernstein

Release date: October 17, 2007 [eBook #23056]

Most recently updated: January 26, 2021

Language: English

Other information and formats: www.gutenberg.org/ebooks/23056

Credits: Produced by David Widger

*** START OF THE PROJECT GUTENBERG EBOOK THE
RENDEZVOUS ***

THE RENDEZVOUS

By Ivan Turgenev

Translated by Herman Bernstein.

Copyright, 1907, by P. P. Collier & Son.

I was sitting in a birch grove in autumn, near the middle of September. It had been drizzling ever since morning; occasionally the sun shone warmly;—the weather was changeable. Now the sky was overcast with watery white clouds, now it suddenly cleared up for an instant, and then the bright, soft azure, like a beautiful eye, appeared from beyond the dispersed clouds. I was sitting looking about me and listening. The leaves were slightly rustling over my head; and by their very rustle one could tell what season of the year it was. It was not the gay, laughing palpitation of spring; not a soft whispering, nor the lingering chatter of summer, nor the timid and cold lisping of late autumn, but a barely audible, drowsy prattle. A faint breeze was whisking over the tree-tops. The interior of the grove, moist from the rain, was forever changing, as the sun shone or hid beyond the clouds; now the grove was all illuminated as if everything in it had burst into a smile; the trunks of the birch trees suddenly assumed the soft reflection of white silk; the small leaves which lay scattered on the ground all at once became variegated and flashed up like red gold; and the pretty stalks of the tall, branchy ferns, already tinted in their autumn hue, resembling the color of overripe grapes, appeared here and there tangling and crossing one another. Now again everything suddenly turned blue; the bright colors died out instantaneously, the birch trees stood all white, lustreless, like snow which had not yet been touched by the coldly playing rays of the winter sun—and stealthily, slyly, a drizzling rain began to sprinkle and whisper over the forest. The leaves on the birches were almost all green yet, though they had turned somewhat pale; only here and there stood a solitary young little birch, all red or all golden, and one should have seen how brightly these birches flushed in the sun when its rays suddenly appeared gliding and

flashing through the dense net of the thin branches which had just been washed around by the sparkling rain. Not a single bird was heard; all had found shelter, and were silent; only rarely the mocking voice of the bluebird sang out like a little steel bell. Before stopping in this birch forest I passed with my dog through a poplar grove. I confess I am not very fond of the poplar tree with its pale lilac-colored trunk and its grayish-green, metallic leaves, which it lifts high and spreads in the air like a trembling fan—I do not like the constant shaking of its round, untidy leaves, which are so awkwardly attached to long stems. The poplar is pretty only on certain summer evenings when, rising high amid the low shrubbery, it stands against the red rays of the setting sun, shining and trembling, bathed from root to top in uniform yellowish purple—or when, on a clear windy day, it rocks noisily, lispings against the blue sky, and each leaf seems as if eager to tear itself away, to fly and hurry off into the distance. But in general I do not like this tree, and, therefore, not stopping to rest in the poplar grove, I made my way to the birch forest, and seated myself under a tree whose branches started near the ground, and thus could protect me from the rain. Having admired the surrounding view, I fell asleep—I slept that tranquil, sweet sleep which is familiar to hunters only.

I can not say how long I slept, but when I opened my eyes the entire interior of the forest was filled with sunshine, and everywhere the bright blue sky was flashing through the cheerfully droning leaves; the clouds disappeared, driven asunder by the wind which had begun to play; the weather was clear now, and one felt in the air that peculiar, dry freshness which, filling the heart with a certain vigorous sensation, almost always predicts a quiet, clear night after a rainy day. I was about to rise and try my luck at hunting again, when my eyes suddenly fell on a motionless human figure. I gassed at it fixedly; it was a young peasant girl. She was sitting some twenty feet away from me, her head bowed pensively and her hands dropped on her knees; in one hand, which was half open, lay a heavy bunch of field flowers, and every time she breathed the flowers were softly gliding over her checkered skirt. A clear white shirt, buttoned at the neck and the wrists, fell in short, soft folds about her waist; large yellow beads were hanging down from her neck on her bosom in two rows. She was not at all bad-looking. Her heavy fair hair, of a beautiful ash color, parted in two neatly combed half-circles from under a narrow, dark-red head-band, which was pulled down almost to her ivory-white forehead; the rest of her face

was slightly tanned with the golden sunburn peculiar to a tender skin. I could not see her eyes—she did not lift them; but I saw her thin, high eyebrows, her long lashes; these were moist, and on her cheek gleamed a dried-up teardrop, which had stopped near her somewhat pale lips. Her entire small head was very charming; even her somewhat thick and round nose did not spoil it. I liked especially the expression of her face; it was so simple and gentle, so sad and so full of childish perplexity before her own sadness. She was apparently waiting for some one. Something cracked faintly in the forest. Immediately she raised her head and looked around; her eyes flashed quickly before me in the transparent shade—they were large, bright, and shy like a deer's. She listened for a few seconds, not moving her wide-open eyes from the spot whence the faint sound had come; she heaved a sigh, turned her head slowly, bent down still lower and began to examine the flowers. Her eyelids turned red, her lips quivered bitterly and a new teardrop rolled down from under her heavy eyelashes, stopping and sparkling on her cheek. Thus quite a long while passed; the poor girl did not stir—only occasionally she moved her hands and listened—listened all the time. Something cracked once more in the forest—she started. This time the noise did not stop, it was becoming more distinct, it was nearing—at last firm footsteps were heard. She straightened herself, and it seemed as if she lost her courage, for her eyes began to quiver. The figure of a man appeared through the jungle. She looked fixedly, suddenly flushed, and, smiling joyously and happily, seemed about to rise, but she immediately cast down her head again, turned pale, confused—only then she lifted her quivering, almost prayerful, eyes to the man as he paused beside her.

I looked at him from my hiding-place with curiosity. I confess he did not produce a pleasant impression upon me. He was, by all appearances, a spoiled valet of some rich young man. His clothes betokened a claim to taste and smart carelessness. He wore a short top-coat of bronze color, which evidently belonged to his master, and which was buttoned up to the very top; he had on a pink necktie with lilac-colored edges; and his black velvet cap, trimmed with gold stripes, was pulled over his very eyebrows. The round collar of his white shirt propped his ears up and cut his cheeks mercilessly, and the starched cuffs covered his hands up to his red, crooked fingers, which were ornamented with silver and gold rings, set with forget-me-nots of turquoise. His red, fresh, impudent face belonged to those

countenances which, as far as I have observed, are almost always repulsive to men, but, unfortunately, are often admired by women. Apparently trying to give an expression of contempt and of weariness to his rough features, he was forever closing his small, milky-gray eyes, knitting his brows, lowering the corners of his lips, yawning forcedly, and, with careless, although not too clever, ease, now adjusting his reddish, smartly twisted temple-curls, now fingering the yellow hair which bristled upon his thick upper lip—in a word, he was making an insufferable display of himself. He started to do this as soon as he noticed the young peasant girl who was awaiting him. He advanced to her slowly, with large strides, then stood for a while, twitched his shoulders, thrust both hands into the pockets of his coat, and, casting a quick and indifferent glance at the poor girl, sank down on the ground.

“Well?” he began, continuing to look aside, shaking his foot and yawning. “Have you waited long?”

The girl could not answer him at once.

“Long, Victor Alexandrich,” she said at last, in a scarcely audible voice.

“Ah!” He removed his cap, majestically passed his hand over his thick, curly hair whose roots started almost at his eyebrows, and, looking around with dignity, covered his precious head again cautiously. “And I almost forgot all about it. Besides, you see, it’s raining.” He yawned again. “I have a lot of work to do; you can’t look after everything, and he is yet scolding. We are leaving to-morrow—”

“To-morrow?” uttered the girl, and fixed a frightened look upon him.

“To-morrow—Come, come, come, please,” he replied quickly, vexed, noticing that she quivered, and bowed her head in silence. “Please, Akulina, don’t cry. You know I can’t bear it” (and he twitched his flat nose). “If you don’t stop, I’ll leave you right away. What nonsense—to whimper!”

“Well, I shan’t, I shan’t,” said Akulina hastily, swallowing the tears with an effort. “So you’re going away to-morrow?” she added, after a brief silence. “When will it please God to have me meet you again, Victor Alexandrich?”

“We’ll meet, we’ll meet again. If it isn’t next year, it’ll be later. My master, it seems, wants to enter the service in St. Petersburg,” he went on, pronouncing the words carelessly and somewhat indistinctly. “And it may be that we’ll go abroad.”

“You will forget me, Victor Alexandrich,” said Akulina sadly.

“No—why should I? I’ll not forget you, only you had rather be sensible; don’t make a fool of yourself; obey your father—And I’ll not forget you—Oh, no; oh, no.” And he stretched himself calmly and yawned again.

“Do not forget me, Victor Alexandrich,” she resumed in a beseeching voice. “I have loved you so much, it seems—all, it seems, for you—You tell me to obey father, Victor Alexandrich—How am I to obey my father—?”

“How’s that?” He pronounced these words as if from the stomach, lying on his back and holding his hands under his head.

“Why, Victor Alexandrich—you know it yourself—”

She fell silent. Victor fingered his steel watch-chain.

“Akulina, you are not a foolish girl,” he said at last, “therefore don’t talk nonsense. It’s for your own good, do you understand me? Of course, you are not foolish, you’re not altogether a peasant, so to say, and your mother wasn’t always a peasant either. Still, you are without education—therefore you must obey when you are told to.”

“But it’s terrible, Victor Alexandrich.”

“Oh, what nonsense, my dear—what is she afraid of! What is that you have there,” he added, moving close to her, “flowers?”

“Flowers,” replied Akulina sadly. “I have picked some field tansies,” she went on, with some animation. “They’re good for the calves, And here I have some marigolds—for scrofula. Here, look, what a pretty flower! I haven’t seen such a pretty flower in all my life. Here are forget-me-nots, and—and these I have picked for you,” she added, taking from under the tansies a small bunch of cornflowers, tied around with a thin blade of grass; “do you want them?”

Victor held out his hand lazily, took the flowers, smelt them carelessly, and began to turn them around in his fingers, looking up with thoughtful importance. Akulina gazed at him. There was so much tender devotion, reverent obedience, and love in her pensive eyes. She at once feared him, and yet she dared not cry, and inwardly she bade him farewell, and admired him for the last time; and he lay there, stretched out like a sultan, and endured her admiration with magnanimous patience and condescension. I confess I was filled with indignation as I looked at his red face, which betrayed satisfied selfishness through his feigned contempt and

indifference. Akulina was so beautiful at this moment. All her soul opened before him trustingly and passionately;—it reached out to him, caressed him, and he—He dropped the cornflowers on the grass, took out from the side-pocket of his coat a round glass in a bronze frame and began to force it into his eye; but no matter how hard he tried to hold it with his knitted brow, his raised cheek, and even with his nose, the glass dropped out and fell into his hands.

“What’s this?” asked Akulina at last, with surprise.

“A lorgnette,” he replied importantly.

“What is it for?”

“To see better.”

“Let me see it.”

Victor frowned, but gave her the glass.

“Look out; don’t break it.”

“Don’t be afraid, I’ll not break it.” She lifted it timidly to her eye.

“I can’t see anything,” she said naively.

“Shut your eye,” he retorted in the tone of a dissatisfied teacher. She closed the eye before which she held the glass.

“Not that eye, not that one, you fool! The other one!” exclaimed Victor, and, not allowing her to correct her mistake, he took the lorgnette away from her.

Akulina blushed, laughed slightly, and turned away.

“It seems it’s not for us.”

“Of course not!”

The poor girl maintained silence, and heaved a deep sigh.

“Oh, Victor Alexandrich, how will I get along without you?” she said suddenly.

Victor wiped the lorgnette and put it back into his pocket.

“Yes, yes,” he said at last. “At first it will really be hard for you.” He tapped her on the shoulder condescendingly; she quietly took his hand from her shoulder and kissed it. “Well, yes, yes, you are indeed a good girl,” he went on, with a self-satisfied smile; “but it can’t be helped! Consider it yourself! My master and I can’t stay here, can we? Winter is near, and to

pass the winter in the country is simply nasty—you know it yourself. It's a different thing in St. Petersburg! There are such wonders over there that you could not imagine even in your dreams, you silly—What houses, what streets, and society, education—it's something wonderful!” Akulina listened to him with close attention, slightly opening her lips like a child. “However,” he added, wriggling on the ground, “why do I say all this to you? You can't understand it anyway!”

“Why not, Victor Alexandrich? I understood, I understood everything.”

“Just think of her!”

Akulina cast down her eyes.

“You did not speak to me like this before, Victor Alexandrich,” she said, without lifting her eyes.

“Before?—Before! Just think of her!—Before!” he remarked, indignantly.

Both grew silent.

“However, it's time for me to go,” said Victor, and leaned on his elbow, about to rise.

“Wait a little,” said Akulina in an imploring voice.

“What for? I have already said to you, Good-by!”

“Wait,” repeated Akulina.

Victor again stretched himself on the ground and began to whistle. Akulina kept looking at him steadfastly. I could see that she was growing agitated by degrees—her lips twitched, her pale cheeks were reddening.

“Victor Alexandrich,” she said at last in a broken voice, “it's a sin for you, it's a sin, Victor Alexandrich, by God!”

“What's a sin?” he asked, knitting his brows. He raised his head and turned to her.

“It's a sin, Victor Alexandrich. If you would only say a good word to me before leaving—if you would only say one word to me, miserable little orphan that I am:—”

“But what shall I say to you?”

“I don't know. You know better than I do, Victor Alexandrich. Here you are going away—if you would only say one word—What have I done to deserve this?”

“How strange you are! What can I say?”

“If only one word—”

“There she’s firing away one and the same thing,” he muttered with vexation, and got up.

“Don’t be angry, Victor Alexandrich,” she added hastily, unable to repress her tears.

“I’m not angry—only you are foolish—What do you want? I can’t marry you! I can’t, can I? Well, then, what do you want? What?” He stared at her, as if awaiting an answer, and opened his fingers wide.

“I want nothing—nothing,” she replied, stammering, not daring to outstretch her trembling hands to him, “but simply so, at least one word, at parting—”

And the tears began to stream from her eyes.

“Well, there you are, she’s started crying,” said Victor indifferently, pulling the cap over his eyes.

“I don’t want anything,” she went on, sobbing and covering her face with her hands; “but how will I feel now at home, how will I feel? And what will become of me, what will become of me, wretched one that I am? They’ll marry the poor little orphan off to a man she does not like. My poor little head!”

“Keep on singing, keep on singing,” muttered Victor in a low voice, stirring restlessly.

“If you only said one word, just one: ‘Akulina—I—’”

Sudden heartrending sobs interrupted her. She fell with her face upon the grass and cried bitterly, bitterly—All her body shook convulsively, the back of her neck seemed to rise—The long-suppressed sorrow at last burst forth in a stream of tears. Victor stood a while near her, then he shrugged his shoulders, turned around and walked off with large steps.

A few moments went by. She grew silent, lifted her head, looked around and clasped her hands; she was about to run after him, but her feet failed her—she fell down on her knees. I could not endure it any longer and rushed over to her; but before she had time to look at me, she suddenly seemed to have regained her strength—and with a faint cry she rose and disappeared behind the trees, leaving the scattered flowers on the ground.

I stood a while, picked up the bunch of cornflowers, and walked out of the grove to the field. The sun was low in the pale, clear sky; its rays seemed to have faded and turned cold; they did not shine now, they spread in an even, almost watery, light. There was only a half-hour left until evening, and twilight was setting in. A violent wind was blowing fast toward me across the yellow, dried-up stubble-field; the small withered leaves were carried quickly past me across the road; the side of the grove which stood like a wall by the field trembled and flashed clearly, but not brightly; everywhere on the reddish grass, on the blades, and the straw, innumerable autumn cobwebs flashed and trembled. I stopped. I began to feel sad; it seemed a dismal fear of approaching winter was stealing through the gay, though fresh, smile of fading nature. High above me, a cautious raven flew by, heavily and sharply cutting the air with his wings; then he turned his head, looked at me sidewise, and, croaking abruptly, disappeared beyond the forest; a large flock of pigeons rushed past me from a barn, and, suddenly whirling about in a column, they came down and stationed themselves bustlingly upon the field—a sign of spring autumn! Somebody rode by beyond the bare hillock, making much noise with an empty wagon.

I returned home, but the image of poor Akulina did not leave my mind for a long time, and the cornflowers, long withered, are in my possession to this day.

*** END OF THE PROJECT GUTENBERG EBOOK THE
RENDEZVOUS ***

Updated editions will replace the previous one—the old editions will be renamed.

Creating the works from print editions not protected by U.S. copyright law means that no one owns a United States copyright in these works, so the Foundation (and you!) can copy and distribute it in the United States without permission and without paying copyright royalties. Special rules, set forth in the General Terms of Use part of this license, apply to copying and distributing Project Gutenberg™ electronic works to protect the PROJECT GUTENBERG™ concept and trademark. Project Gutenberg is a registered trademark, and may not be used if you charge for an eBook, except by following the terms of the trademark license, including paying royalties for use of the Project Gutenberg trademark. If you do not charge anything for copies of this eBook, complying with the trademark license is very easy. You may use this eBook for nearly any purpose such as creation of derivative works, reports, performances and research. Project Gutenberg eBooks may be modified and printed and given away—you may do practically ANYTHING in the United States with eBooks not protected by U.S. copyright law. Redistribution is subject to the trademark license, especially commercial redistribution.

START: FULL LICENSE

THE FULL PROJECT GUTENBERG™ LICENSE

PLEASE READ THIS BEFORE YOU DISTRIBUTE OR USE THIS WORK

To protect the Project Gutenberg™ mission of promoting the free distribution of electronic works, by using or distributing this work (or any other work associated in any way with the phrase “Project Gutenberg”), you agree to comply with all the terms of the Full Project Gutenberg License available with this file or online at www.gutenberg.org/license.

Section 1. General Terms of Use and Redistributing Project Gutenberg electronic works

1.A. By reading or using any part of this Project Gutenberg electronic work, you indicate that you have read, understand, agree to and accept all the terms of this license and intellectual property (trademark/copyright) agreement. If you do not agree to abide by all the terms of this agreement, you must cease using and return or destroy all copies of Project Gutenberg electronic works in your possession. If you paid a fee for obtaining a copy of or access to a Project Gutenberg electronic work and you do not agree to be bound by the terms of this agreement, you may obtain a refund from the person or entity to whom you paid the fee as set forth in paragraph 1.E.8.

1.B. “Project Gutenberg” is a registered trademark. It may only be used on or associated in any way with an electronic work by people who agree to be bound by the terms of this agreement. There are a few things that you can do with most Project Gutenberg electronic works even without complying with the full terms of this agreement. See paragraph 1.C below. There are a lot of things you can do with Project Gutenberg electronic works if you follow the terms of this agreement and help preserve free future access to Project Gutenberg electronic works. See paragraph 1.E below.

1.C. The Project Gutenberg Literary Archive Foundation (“the Foundation” or PGLAF), owns a compilation copyright in the collection of Project Gutenberg electronic works. Nearly all the individual works in the collection are in the public domain in the United States. If an individual work is unprotected by copyright law in the United States and you are

located in the United States, we do not claim a right to prevent you from copying, distributing, performing, displaying or creating derivative works based on the work as long as all references to Project Gutenberg are removed. Of course, we hope that you will support the Project Gutenberg mission of promoting free access to electronic works by freely sharing Project Gutenberg works in compliance with the terms of this agreement for keeping the Project Gutenberg name associated with the work. You can easily comply with the terms of this agreement by keeping this work in the same format with its attached full Project Gutenberg License when you share it without charge with others.

1.D. The copyright laws of the place where you are located also govern what you can do with this work. Copyright laws in most countries are in a constant state of change. If you are outside the United States, check the laws of your country in addition to the terms of this agreement before downloading, copying, displaying, performing, distributing or creating derivative works based on this work or any other Project Gutenberg work. The Foundation makes no representations concerning the copyright status of any work in any country other than the United States.

1.E. Unless you have removed all references to Project Gutenberg:

1.E.1. The following sentence, with active links to, or other immediate access to, the full Project Gutenberg License must appear prominently whenever any copy of a Project Gutenberg work (any work on which the phrase “Project Gutenberg” appears, or with which the phrase “Project Gutenberg” is associated) is accessed, displayed, performed, viewed, copied or distributed:

This eBook is for the use of anyone anywhere in the United States and most other parts of the world at no cost and with almost no restrictions whatsoever. You may copy it, give it away or re-use it under the terms of the Project Gutenberg™ License included with this eBook or online at www.gutenberg.org. If you are not located in the United States, you will have to check the laws of the country where you are located before using this eBook.

1.E.2. If an individual Project Gutenberg electronic work is derived from texts not protected by U.S. copyright law (does not contain a notice indicating that it is posted with permission of the copyright holder), the work can be copied and distributed to anyone in the United States without paying any fees or charges. If you are redistributing or providing access to a work with the phrase “Project Gutenberg” associated with or appearing on the work, you must comply either with the requirements of paragraphs 1.E.1 through 1.E.7 or obtain permission for the use of the work and the Project Gutenberg trademark as set forth in paragraphs 1.E.8 or 1.E.9.

1.E.3. If an individual Project Gutenberg electronic work is posted with the permission of the copyright holder, your use and distribution must comply with both paragraphs 1.E.1 through 1.E.7 and any additional terms imposed by the copyright holder. Additional terms will be linked to the Project Gutenberg License for all works posted with the permission of the copyright holder found at the beginning of this work.

1.E.4. Do not unlink or detach or remove the full Project Gutenberg License terms from this work, or any files containing a part of this work or any other work associated with Project Gutenberg.

1.E.5. Do not copy, display, perform, distribute or redistribute this electronic work, or any part of this electronic work, without prominently displaying the sentence set forth in paragraph 1.E.1 with active links or immediate access to the full terms of the Project Gutenberg License.

1.E.6. You may convert to and distribute this work in any binary, compressed, marked up, nonproprietary or proprietary form, including any word processing or hypertext form. However, if you provide access to or distribute copies of a Project Gutenberg work in a format other than “Plain Vanilla ASCII” or other format used in the official version posted on the official Project Gutenberg website (www.gutenberg.org), you must, at no additional cost, fee or expense to the user, provide a copy, a means of exporting a copy, or a means of obtaining a copy upon request, of the work in its original “Plain Vanilla ASCII” or other form. Any alternate format must include the full Project Gutenberg License as specified in paragraph 1.E.1.

1.E.7. Do not charge a fee for access to, viewing, displaying, performing, copying or distributing any Project Gutenberg works unless you comply with paragraph 1.E.8 or 1.E.9.

1.E.8. You may charge a reasonable fee for copies of or providing access to or distributing Project Gutenberg electronic works provided that:

- You pay a royalty fee of 20% of the gross profits you derive from the use of Project Gutenberg works calculated using the method you already use to calculate your applicable taxes. The fee is owed to the owner of the Project Gutenberg trademark, but he has agreed to donate royalties under this paragraph to the Project Gutenberg Literary Archive Foundation. Royalty payments must be paid within 60 days following each date on which you prepare (or are legally required to prepare) your periodic tax returns. Royalty payments should be clearly marked as such and sent to the Project Gutenberg Literary Archive Foundation at the address specified in Section 4, "Information about donations to the Project Gutenberg Literary Archive Foundation."
- You provide a full refund of any money paid by a user who notifies you in writing (or by e-mail) within 30 days of receipt that s/he does not agree to the terms of the full Project Gutenberg™ License. You must require such a user to return or destroy all copies of the works possessed in a physical medium and discontinue all use of and all access to other copies of Project Gutenberg™ works.
- You provide, in accordance with paragraph 1.F.3, a full refund of any money paid for a work or a replacement copy, if a defect in the electronic work is discovered and reported to you within 90 days of receipt of the work.
- You comply with all other terms of this agreement for free distribution of Project Gutenberg™ works.

1.E.9. If you wish to charge a fee or distribute a Project Gutenberg™ electronic work or group of works on different terms than are set forth in this agreement, you must obtain permission in writing from the Project Gutenberg Literary Archive Foundation, the manager of the Project

Gutenberg™ trademark. Contact the Foundation as set forth in Section 3 below.

1.F.

1.F.1. Project Gutenberg volunteers and employees expend considerable effort to identify, do copyright research on, transcribe and proofread works not protected by U.S. copyright law in creating the Project Gutenberg™ collection. Despite these efforts, Project Gutenberg™ electronic works, and the medium on which they may be stored, may contain “Defects,” such as, but not limited to, incomplete, inaccurate or corrupt data, transcription errors, a copyright or other intellectual property infringement, a defective or damaged disk or other medium, a computer virus, or computer codes that damage or cannot be read by your equipment.

1.F.2. LIMITED WARRANTY, DISCLAIMER OF DAMAGES - Except for the “Right of Replacement or Refund” described in paragraph 1.F.3, the Project Gutenberg Literary Archive Foundation, the owner of the Project Gutenberg™ trademark, and any other party distributing a Project Gutenberg™ electronic work under this agreement, disclaim all liability to you for damages, costs and expenses, including legal fees. YOU AGREE THAT YOU HAVE NO REMEDIES FOR NEGLIGENCE, STRICT LIABILITY, BREACH OF WARRANTY OR BREACH OF CONTRACT EXCEPT THOSE PROVIDED IN PARAGRAPH 1.F.3. YOU AGREE THAT THE FOUNDATION, THE TRADEMARK OWNER, AND ANY DISTRIBUTOR UNDER THIS AGREEMENT WILL NOT BE LIABLE TO YOU FOR ACTUAL, DIRECT, INDIRECT, CONSEQUENTIAL, PUNITIVE OR INCIDENTAL DAMAGES EVEN IF YOU GIVE NOTICE OF THE POSSIBILITY OF SUCH DAMAGE.

1.F.3. LIMITED RIGHT OF REPLACEMENT OR REFUND - If you discover a defect in this electronic work within 90 days of receiving it, you can receive a refund of the money (if any) you paid for it by sending a written explanation to the person you received the work from. If you received the work on a physical medium, you must return the medium with your written explanation. The person or entity that provided you with the defective work may elect to provide a replacement copy in lieu of a refund. If you received the work electronically, the person or entity providing it to

you may choose to give you a second opportunity to receive the work electronically in lieu of a refund. If the second copy is also defective, you may demand a refund in writing without further opportunities to fix the problem.

1.F.4. Except for the limited right of replacement or refund set forth in paragraph 1.F.3, this work is provided to you 'AS-IS', WITH NO OTHER WARRANTIES OF ANY KIND, EXPRESS OR IMPLIED, INCLUDING BUT NOT LIMITED TO WARRANTIES OF MERCHANTABILITY OR FITNESS FOR ANY PURPOSE.

1.F.5. Some states do not allow disclaimers of certain implied warranties or the exclusion or limitation of certain types of damages. If any disclaimer or limitation set forth in this agreement violates the law of the state applicable to this agreement, the agreement shall be interpreted to make the maximum disclaimer or limitation permitted by the applicable state law. The invalidity or unenforceability of any provision of this agreement shall not void the remaining provisions.

1.F.6. INDEMNITY - You agree to indemnify and hold the Foundation, the trademark owner, any agent or employee of the Foundation, anyone providing copies of Project Gutenberg™ electronic works in accordance with this agreement, and any volunteers associated with the production, promotion and distribution of Project Gutenberg™ electronic works, harmless from all liability, costs and expenses, including legal fees, that arise directly or indirectly from any of the following which you do or cause to occur: (a) distribution of this or any Project Gutenberg work, (b) alteration, modification, or additions or deletions to any Project Gutenberg work, and (c) any Defect you cause.

Section 2. Information about the Mission of Project Gutenberg

Project Gutenberg is synonymous with the free distribution of electronic works in formats readable by the widest variety of computers including obsolete, old, middle-aged and new computers. It exists because of the

efforts of hundreds of volunteers and donations from people in all walks of life.

Volunteers and financial support to provide volunteers with the assistance they need are critical to reaching Project Gutenberg's goals and ensuring that the Project Gutenberg collection will remain freely available for generations to come. In 2001, the Project Gutenberg Literary Archive Foundation was created to provide a secure and permanent future for Project Gutenberg and future generations. To learn more about the Project Gutenberg Literary Archive Foundation and how your efforts and donations can help, see Sections 3 and 4 and the Foundation information page at www.gutenberg.org.

Section 3. Information about the Project Gutenberg Literary Archive Foundation

The Project Gutenberg Literary Archive Foundation is a non-profit 501(c)(3) educational corporation organized under the laws of the state of Mississippi and granted tax exempt status by the Internal Revenue Service. The Foundation's EIN or federal tax identification number is 64-6221541. Contributions to the Project Gutenberg Literary Archive Foundation are tax deductible to the full extent permitted by U.S. federal laws and your state's laws.

The Foundation's business office is located at 41 Watchung Plaza #516, Montclair NJ 07042, USA, +1 (862) 621-9288. Email contact links and up to date contact information can be found at the Foundation's website and official page at www.gutenberg.org/contact

Section 4. Information about Donations to the Project Gutenberg Literary Archive Foundation

Project Gutenberg™ depends upon and cannot survive without widespread public support and donations to carry out its mission of increasing the number of public domain and licensed works that can be freely distributed in machine-readable form accessible by the widest array of equipment

including outdated equipment. Many small donations (\$1 to \$5,000) are particularly important to maintaining tax exempt status with the IRS.

The Foundation is committed to complying with the laws regulating charities and charitable donations in all 50 states of the United States. Compliance requirements are not uniform and it takes a considerable effort, much paperwork and many fees to meet and keep up with these requirements. We do not solicit donations in locations where we have not received written confirmation of compliance. To SEND DONATIONS or determine the status of compliance for any particular state visit www.gutenberg.org/donate.

While we cannot and do not solicit contributions from states where we have not met the solicitation requirements, we know of no prohibition against accepting unsolicited donations from donors in such states who approach us with offers to donate.

International donations are gratefully accepted, but we cannot make any statements concerning tax treatment of donations received from outside the United States. U.S. laws alone swamp our small staff.

Please check the Project Gutenberg web pages for current donation methods and addresses. Donations are accepted in a number of other ways including checks, online payments and credit card donations. To donate, please visit: www.gutenberg.org/donate.

Section 5. General Information About Project Gutenberg electronic works

Professor Michael S. Hart was the originator of the Project Gutenberg concept of a library of electronic works that could be freely shared with anyone. For forty years, he produced and distributed Project Gutenberg eBooks with only a loose network of volunteer support.

Project Gutenberg eBooks are often created from several printed editions, all of which are confirmed as not protected by copyright in the U.S. unless a

copyright notice is included. Thus, we do not necessarily keep eBooks in compliance with any particular paper edition.

Most people start at our website which has the main PG search facility:
www.gutenberg.org.

This website includes information about Project Gutenberg, including how to make donations to the Project Gutenberg Literary Archive Foundation, how to help produce our new eBooks, and how to subscribe to our email newsletter to hear about new eBooks.